

3	30-2026-01583021 Sunset Ridge Investment LP vs. Martinez	The Court has read and considered the Plaintiff's Motion to Deem Request for Admission, Set One Admitted to Julio C. Martinez and Fernando Reyes (ROA 44). IT IS ORDERED that the Plaintiff's Motion to Deem Request for Admission, Set One Admitted as to Julio C. Martinez and Fernando Reyes is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendants on August 13, 2026, be deemed admitted. The Court orders Defendants, Julio C. Martinez and Fernando Reyes, forthwith to pay a sanction in the amount of \$810 to Plaintiff's Counsel. This sum shall be made payable to "Kimball, Tirey & St. John, LLP" within 5 business days of service of this order and shall be delivered via mail to Kimball, Tirey & St. John, LLP, 2040 Main Street, Suite 500, Irvine, CA 92614. If any party is required to further enforce the terms herein, the party enforcing this Judgment shall be entitled to further attorney's fees and costs. The Court Orders Plaintiff to provide notice of the Court's ruling.
10	30-2026-01590441 Nguyen vs. McIntosh	The Court has read and considered the Defendants' Demurrer to Amended Complaint (ROA 11), the Amended Complaint (ROA 7) and Plaintiff's Opposition (ROA 24). California Civil Code § 1954.535 provides that an owner must provide a tenant subject to an agreement or contract with a government agency with 90 days' written notice of the termination of the contract. This California Civil Code section does not exempt a landlord from the requirements under the Tenant Protection of 2019 if it applies to the tenancy, requiring notice under the just cause provision under Civil Code section 1946.2(b) or the California Code of Civil Procedure § 1161 requirements. The Plaintiff answered 7(b) in the Amended Complaint that the Tenant Protection Act of 2019 applies and that, under 8(a), the tenancy was terminated for at-fault just cause. Serving a valid notice under Cal Code Civ Proc § 1161 is an absolute jurisdictional prerequisite to filing an unlawful detainer complaint. The California Court of Appeal held, "The Unlawful Detainer Act establishes procedures for resolving disputes between landlords and tenants regarding the right to possess real property. (<i>Stancil v. Superior Court</i> (2021) 11 Cal.5th 381, 394 [278 Cal.Rptr.3d 27, 485 P.3d 446].) Unlawful detainer proceedings are summary in nature, providing for shorter timelines and a more limited scope than standard civil actions. (<i>Id.</i> at p. 390; <i>Barela v. Superior Court</i> (1981) 30 Cal.3d 244, 249 [178 Cal.Rptr. 618, 636 P.2d 582].) These proceedings seek to balance tenants' occupancy rights against landlords' rights to earn income. (<i>Stancil</i>, at p. 390.) They also demand strict procedural compliance. (<i>Ibid.</i>) Code of Civil Procedure section 1161 sets forth the circumstances under which a tenant is guilty of unlawful detainer and may be evicted. (Code Civ. Proc., § 1161, items 2–4; <i>Stancil</i>, at p. 395.)" (<i>California Apartment Assn. v. City of Pasadena</i> (2025) 117 Cal.App. 5th 187, 241-242.) The 90-day notice required by Cal Civ Code § 1954.535 serves a distinct purpose: it manages the transition, rent obligations, and termination of a